

SCALED UP Uttarakhand CM Pushkar Dhami presents the UCC draft report, Feb. 2

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UCC

THE CODE IN UNIFORM

By Anilesh S. Mahajan

With just weeks to go before the general election is announced, Uttarakhand chief minister Pushkar Singh Dhami believes he has handed Prime Minister Narendra Modi and the party, the BJP, a political plank to push further the pro-Hindutva narrative. Amid the sound of thumping on tables and chants of Jai Shri Ram and Vande Mataram, the state assembly passed a bill on a draft uniform civil code (UCC), paving the way for common civil laws for all religions to govern issues like marriage, divorce, inheritance and adoption. This is perceived as the BJP's first step to get uniformity in civil laws nationally, and it's likely that other party-ruled states will follow suit.

Civil laws on matters like marriages, divorce, adoption and inheritance are entries in the Seventh Schedule of the Constitution, allowing the states and Centre both to frame laws. Only in case of disputes will the Centre's law prevail. With minor tweaks to the Uttarakhand template, BJP-ruled Gujarat and Assam are also likely to pass similar laws before the code of conduct—expected by mid-March—kicks in. The Uttarakhand act, the first-ever iteration of the UCC, saw extensive discussions, anchored by a panel led by retired Supreme Court judge Ranjana Prakash Desai. It drafted a four-volume, 749-page report containing several recommendations. While the Centre is still awaiting the Law Commission's report on a UCC for